

AUCTION SERVICES AGREEMENT: Georgia

This Auction Services Agreement ("Agreement") is made as of the latter date of signatures below between Seller and Auctioneer.

WHEREAS, Seller desires to receive, and Auctioneer is willing to provide, or cause to be provided, certain services, pursuant to the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual agreements and provisions contained in this Agreement, the parties agree as follows:

1. Definitions.

"Auctioneer" means collectively, Altisource Online Auction, Inc. and its affiliated licensee.

"Claims" means collectively, losses, damages, claims, allegations, actions, fines, assessments, penalties, proceedings, causes of action, fees and expenses of any nature, including attorneys' fees and court costs.

"Seller" means: Wholesaler: _____

"Property" means property located at _____

"Website" means www.Hubzu.com.

2. Services. Auctioneer shall perform all necessary and commercially reasonable activities to auction the Property on the Website. Seller shall cooperate with Auctioneer to carry out its responsibilities under this Agreement, which includes providing Auctioneer with all information needed to auction the Property.

3. No Real Estate Agency or Transactional Broker Relationship. Seller acknowledges that (a) this Agreement is for the provision of auctioneer services and is not a real estate brokerage listing agreement and (b) Auctioneer is not representing Seller as a real estate agent or transactional broker.

4. Auction. The auction will commence at 11:59 PM ET on the effective date of this Agreement, or at a subsequent date and time thereafter, and will continue for a series of auctions, each for a duration of seven (7) days, until Seller accepts a bid on the Property. The Property page of the Website will identify if the Property is subject to a reserve. Once the auction has commenced and unless otherwise prohibited by law, Auctioneer may place counterbids on behalf of the Seller in amounts and at increments determined by the Auctioneer up to the reserve price identified in the Property page of the Website. Where required by law, the Seller's counter bid shall not result in the sale of the Property. The settlement will occur prior to or at the closing of the Property. Upon the settlement of the Property, Seller will be provided a summary of the auction. Seller shall only accept offers on the Property via the Website. Auctioneer shall not bid or otherwise participate in the auction of the Property.

5. Seller's Authority. Elects to act in its own authority with respect to the provisions of this Agreement, which shall be evidenced by the execution of this Agreement by an authorized signatory of Seller. Provisions relating to Asset Manager shown in this Agreement shall be disregarded.

6. Compensation. As compensation for the Services, Seller shall pay compensation in such amounts and in such manner as is agreed upon from time to time by Seller and Auctioneer or their respective affiliates. Seller acknowledges that the buyer of the Property may be required to pay a "Buyer's Premium" of up to 5% of the purchase price of the Property. Any such fees to be paid by the buyer of the Property will be set forth on the Property page of the Website. Auctioneer may charge a fee to users of the Website if they fail to complete a transaction after becoming the selected bidder and are chosen by Seller to move forward with the transaction. No

other compensation including fees, commissions, rentals, advertising or labor will be due under this Agreement. Auctioneer or its affiliate will be solely obligated to pay any cost for advertising and promotions related to the auction of the Property.

7. Term and Termination. Auctioneer's appointment as Seller's auctioneer will commence on the effective date of this Agreement and will remain in full force and effect until the earliest of (a) Seller accepting a bid on the Property or (b) Seller exercising its termination rights in accordance with this section. Seller may terminate this Agreement upon five (5) days written notice to Auctioneer, provided the Property is not under contract.

8. Representations and Warranties. Each party represents and warrants to the other party that (a) such party has all appropriate consents, approvals and authority to enter into this Agreement, (b) the individuals executing this Agreement have authority to bind such party and (c) such party has all appropriate licenses, permits, bonds and authorizations to the extent required by law to carry out its responsibilities set forth in this Agreement. Seller represents and warrants to Auctioneer that (i) Seller's hazard and liability insurance on the Property is current and will remain in effect until transfer of title to the buyer of the Property and (ii) it is legally entitled to convey the Property and any improvements to the Property.

9. Indemnification. To the fullest extent permitted by law, Seller agrees to indemnify, defend and hold Auctioneer harmless from and against all Claims arising out of or in any way related to the (a) title, condition, habitability, marketability or value of the Property or any other material fact relating to the Property including systems, structures, environmental contamination or hazards (such as lead paint, mold, radon or other biological or non-biological contaminants), flood zones or hazards or soils or geology, whether now existing or later arising or becoming evident and (b) involvement or acts or omissions of Seller. This section will survive closing or termination of this Agreement.

10. Entire Agreement. This Agreement constitutes the entire agreement and understanding of the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements and understandings, oral or written, relating to said subject matter between Seller and Auctioneer. Unless the context requires otherwise, (a) "include" (and its derivative forms) means "including without limitation", (b) "may" means has the right, but not the obligation, to do something, (c) references in this Agreement to the plural include the singular, the singular the plural, the masculine the feminine, the feminine the masculine and the part the whole, (d) the word "or" will not be construed as exclusive, (e) the recitals are incorporated into this Agreement by this reference and made a part hereof and (f) all references to the buyer of the Property also include any agent, broker or other representative of the buyer of the Property. The section headings used in this Agreement are placed for convenience of reference only and in the case of a conflict, the text, rather than such headings, will control.

11. Communications Regarding Real Estate Transaction. Seller acknowledges that many communications and notices in real estate transactions are of a time sensitive nature and that the failure to be available to receive such notices and communications can have adverse, legal, business and financial consequences. Seller shall remain reasonably available to receive communications from Auctioneer, through Asset Manager (if applicable) or otherwise.

12. Notices. All notices required or contemplated to be sent under this Agreement will be deemed sufficient and delivered if in writing: (a) upon receipt, if hand delivered personally or mailed by registered or certified mail, return receipt requested and postage prepaid; or (b) at noon on the business day after dispatch, if sent by an internationally recognized overnight courier. If notice is to Auctioneer, then in addition to (a) or (b) of this section, delivery also requires that Seller provide Auctioneer an electronic mail copy of the notice to contractmanagement@altisource.com. All notices should be sent to the following addresses and indicated contacts:

If to Auctioneer:

Altisource Online Auction, Inc.

If to Seller: (Seller= Wholesaler)

Name: Wholesaler's LLC, First and Last Name

2300 Lakeview Parkway, 7th Floor, Suite 756,
Alpharetta, Atlanta GA 30009
Attention: Corporate Secretary

Attention: Asset Manager

13. Severability. If any provision of this Agreement is held to be invalid or unenforceable for any reason, such provision will be conformed to prevailing law rather than voided, if possible, in order to achieve the intent of the parties and, in any event, the remaining provisions of this Agreement will remain in full force and effect and will be binding upon the parties.

14. Successors and Assigns. This Agreement and the terms, covenants, provisions and conditions hereof will be binding upon, and will inure to the benefit of, the respective heirs, successors and assigns of the parties.

15. Governing Law. This Agreement and the respective rights and obligations of the parties will be governed by and construed in accordance with the laws of the state in which the Property is located, without regard to its conflicts of laws provisions.

16. Waiver of Jury Trial. THE PARTIES HEREBY KNOWINGLY AND VOLUNTARILY WAIVE ANY RIGHT WHICH EITHER OR BOTH OF THEM MAY HAVE TO RECEIVE A TRIAL BY JURY WITH RESPECT TO ANY CLAIMS, CONTROVERSIES OR DISPUTES WHICH MAY ARISE OUT OF THIS AGREEMENT OR THE SUBJECT MATTER HEREOF.

17. West Virginia. If the Property is located in the state of West Virginia, Auctioneer hereby represents and warrants to Seller that Auctioneer is licensed by the Department of Agriculture and is bonded in favor of the state of West Virginia.

18. Execution. The parties may execute this Agreement in any number of counterparts. Each counterpart will be deemed an original and all counterparts will constitute one agreement binding on both parties. The parties may execute this Agreement by providing an electronic signature under the terms of the Electronic Signatures Act, 15 U.S.C. § 7001 et. seq., and this Agreement may not be denied legal effect solely because it is in electronic form or permits the completion of the business transaction referenced herein electronically instead of in person.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the parties have caused this agreement to be executed as of the last date written below:

I have read and accept the terms of this Agreement.

SELLER

Wholesaler's LLC

Signed: \CPSP\

Name:

Date:

AUCTIONEER

ALTISOURCE ONLINE AUCTION, INC.

Signed:

Name: **Aaron Brailer**
Sherry Price

Date:

Signatory's License #: **AU004532**

Telephone Number: **(855)882-1314**

E-mail address: **aaron.brailer@rhss.com**

AUCTIONEER FIRM REAL ESTATE BROKER: (If applicable)

ALTISOURCE ONLINE AUCTION, INC.

Signed:

Name: **Christopher Rose**

Andrea Butcher-Thomas

Date:

Signatory's License #: **402595**

Firm License #: **AU-C003097**

Telephone Number: **(855)882-1314**

E-mail address: **Christopher.rose@rhss.com**